

25STCV35994 25STCV35994

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Case Number: 25STCV35994 Hearing Date: July 15, 2026 Dept: 514

Bone v. So-Cal Capital, Inc.

25STCV35994

Defendants' Motion to Expunge Lis Pendens and for Attorneys' Fees

Tentative Ruling

The request to expunge the lis pendens is denied as moot.

The request for attorneys' fees is granted in part.

Background

On December 10, 2025, Roderick V.

Bone filed the complaint in this action against So-Cal Capital, Inc., So-Cal Advisory, Inc., and Does 1 through 20.

On March 23, 2026, Bone

Development, LLC and Roderick V. Bone (collectively, "Plaintiffs") filed a First Amended Complaint (the "FAC") against So-Cal Capital, Inc., So-Cal Advisory, Inc., Patrick Lacy (collectively, "Defendants"), and Does 1 through 20, asserting causes of action for (1) violation of Civil Code sections 2923.6 and 2924.11 in the California Homeowner Bill of Rights; (2) violation of AB 2424; (3) quiet title; and (4) intentional infliction of emotional distress.

On April 28, 2026, Defendants filed this motion to expunge a lis pendens recorded on or about March 6, 2026, and for an award of attorneys' fees. The hearing on the motion was set for June 9.

On May 20, 2026, the Court, at the request of Plaintiffs, dismissed the second, third and fourth causes of action in the FAC.

Plaintiffs did not file an opposition to the motion.

On June 1, Defendants filed a reply.

On June 8, 2026, the Court, at the request of Plaintiffs, dismissed the entire action without prejudice. Upon the dismissal of the action, the hearing date on Defendants' motion was vacated.

On June 11, 2026, the Court, on Defendants' ex parte application, set a new hearing date of July 15 for Defendants' motion and reopened the briefing.

On June 15, 2026, Defendants filed a supplemental brief in support of their motion.

Plaintiffs did not file an opposition.

On June 18, 2026, Plaintiffs filed a document entitled, "Substitution of Attorney – Civil" (Form MC-050), but the document appears to be a nullity: the same lawyer (Bahram Madaen) is identified as both Plaintiffs' former legal representative and their new legal representative.

Discussion

On April 29, 2026, Plaintiffs recorded a withdrawal of the lis pendens. (Reply, at p. 2.)

Accordingly, the Court DENIES AS MOOT the request of Defendants to expunge the lis pendens.

The withdrawal of the lis pendens does not, however, render moot Defendants' request for attorneys' fees under Code of Civil Procedure section 405.38.

Plaintiffs do not oppose the motion. The Court has independently reviewed the request for fees submitted by Defendants.

All substantive and procedural requirements are satisfied. The fees requested are reasonable. Based on a total of 13.8 hours expended,

multiplied by counsel's reasonable billing rate of \$400 per hour, the Court sets fees in the amount of \$5,520. (See

Meleski Decl., ¶ 3.) There is no evidence in the record to support a finding that Plaintiffs acted with substantial justification or that other circumstances make the imposition of fees unjust.

Conclusion

The Court DENIES AS MOOT the request of Defendants to expunge the lis pendens.

The Court GRANTS IN PART the request of Defendants for attorneys' fees.

The Court ORDERS Plaintiffs Bone Development, LLC and Roderick V. Bone, jointly and severally, to pay the amount of \$5,520 to Defendants So-Cal Capital, Inc., So-Cal Advisory, Inc., and Patrick Lacy (through Defendants' counsel) within 30 days of notice.

The Court ORDERS Defendants to give notice.